

HOUSE BILL 2109

By Boyd

AN ACT to amend Tennessee Code Annotated, Title 29;
Title 38 and Title 50, relative to liability for actions
of demonstrators.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 29, Chapter 34, Part 2, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Compensation" means a salary, fee, payment, reimbursement, or
other valuable consideration, or combination thereof, whether received or to be
received;

(2) "Demonstration" means a public gathering of one (1) or more
demonstrators protesting against something or expressing views on a political
issue; and

(3) "Demonstrator" means a person who takes part in-person in a
demonstration.

(b) Notwithstanding a law to the contrary, a person who provides compensation
to a demonstrator in exchange for the demonstrator's participation in a demonstration
may be vicariously liable for damages caused by the demonstrator if the demonstrator's
conduct, while participating in the demonstration for which the person compensated the
demonstrator to participate, satisfies the elements of one (1) or more of the following
offenses:

(1) Riot under § 39-17-302;

(2) Aggravated riot under § 39-17-303;

- (3) Disorderly conduct under § 39-17-305;
- (4) Disrupting a meeting, procession, or gathering under § 39-17-306;
- (5) Obstructing a highway or passageway, or disobeying a reasonable request or order to move under § 39-17-307;
- (6) Harassment under § 39-17-308;
- (7) Civil rights intimidation under § 39-17-309;
- (8) Desecration of a venerated object under § 39-17-311;
- (9) Civil disorder under § 39-17-314;
- (10) Disorderly conduct at funerals under § 39-17-317; or
- (11) Unauthorized placement of signs or markings under § 39-17-319.

(c) In order to establish liability under this section, a plaintiff:

(1) Must prove that a defendant provided any compensation to a demonstrator in exchange for the demonstrator's participation in a demonstration and that the demonstrator's conduct satisfies the elements of one (1) of the offenses listed in subdivisions (b)(1)-(11); and

(2) Is not required to produce evidence of a criminal conviction against the demonstrator who received compensation from the defendant.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it, and applies only to acts occurring on or after that date.